

Terms of Service

Welcome to Mobtions. These Terms of Service ("Terms") govern your access to and use of Mobtions' websites, services, SDKs, APIs, advertising exchange, and any related offerings (collectively, the "Services"). By accessing or using our Services, you agree to be bound by these Terms and all applicable laws and regulations. If you do not agree to these Terms, please do not use our Services.

1. Definitions

- **"Motions", "we", "our", or "us"** refers to the entity providing the Services.
- **"Customer", "you", or "your"** refers to publishers, advertisers, and any person or entity that uses the Mobtions Services.
- **"End Users"** are the individuals who access or use mobile apps and websites that integrate Mobtions Services.

2. Eligibility To use Mobtions Services, you must be at least 18 years old and have the authority to enter into legally binding agreements.

3. Account Registration You must provide accurate, current, and complete information when registering for an account. You are responsible for maintaining the confidentiality of your account credentials and for all activity under your account.

4. Use of Services You agree to:

- Use the Services only for lawful purposes.
- Comply with all applicable laws, including privacy and data protection laws.
- Not engage in fraudulent or deceptive practices.
- Not interfere with or disrupt the Services or servers.

5. Publisher Responsibilities If you are a publisher:

- You must disclose your data collection and usage practices to your end users.
- You are solely responsible for the content of your apps and ensuring that your apps do not contain prohibited or harmful material.
- You must not collect data from users under 13 years of age unless compliant with COPPA and other relevant laws.

6. Advertiser Responsibilities If you are an advertiser:

- You must ensure that your ads are not misleading, unlawful, or harmful.
- You are responsible for the content and landing pages of your ads.
- You agree not to use any unauthorized means to influence ad delivery or performance.

7. Data Usage and Privacy Mobtions' collection and use of data is governed by our Privacy Policy. By using our Services, you consent to the practices described in the Privacy Policy.

8. Intellectual Property All content, software, and technology used in connection with the Services is the property of Mobtions or its licensors. You may not reproduce, distribute, or create derivative works without prior written consent.

9. Termination Mobtions may suspend or terminate your access to the Services at any time, with or without cause or notice, including for violations of these Terms or applicable law.

10. Disclaimers The Services are provided on an "as is" and "as available" basis. Mobtions makes no warranties, express or implied, including but not limited to merchantability, fitness for a particular purpose, and non-infringement.

11. Limitation of Liability To the fullest extent permitted by law, Mobtions shall not be liable for any indirect, incidental, special, consequential or punitive damages, or any loss of profits or revenues, arising from your use of the Services.

12. Indemnification You agree to indemnify and hold harmless Mobtions, its affiliates, officers, directors, and employees from any claims, liabilities, damages, or expenses arising from your use of the Services, your content, or your violation of these Terms.

13. Modifications Mobtions may update or modify these Terms at any time. Changes will be posted on our website with an updated effective date. Your continued use of the Services constitutes acceptance of the revised Terms.

14. Governing Law and Dispute Resolution These Terms shall be governed by and construed in accordance with the laws of [Insert Jurisdiction]. Any disputes arising out of or related to these Terms or the Services shall be resolved through binding arbitration or in a court of competent jurisdiction in [Insert Jurisdiction].

15. Contact Information For any questions about these Terms, please contact us at: [✉](mailto:advertising@mobtions.com)
advertising@mobtions.com